CI2026-22100 Index # : EF2026-0292

Cornell University

January 14, 2026

[redacted]
Via Email

Dear [redacted]

In accordance with Cornell University Policy 6.4, appeals submitted under this policy are reviewed by a three-member Appeal Panel that includes myself; Vice Provost and Professor Steven Jackson; and a member of the Hearing Panel pool, in this case, Teaching Professor Hadas Ritz. In reviewing your appeal, we have read and carefully considered the appeal documents submitted by you and the complainant, the decision of the hearing panel, and the additional materials that constitute the appeal record in this matter.

You appealed on the grounds that the hearing panel rendered a decision that was clearly erroneous and "procedurally improper."

The two primary points you raise in your appeal are that 1) a hearing panelist was in a vehicle for a portion of the hearing, and 2) that you did not have the proper opportunity to respond to the misconduct (attempted sexual exploitation) for which you were ultimately found responsible, and that the finding itself was clearly erroneous.

We acknowledge your concerns that a hearing panelist was apparently in a vehicle for a portion of the hearing. However, our close review of the record shows this to be a substantially de minimis amount of time in a hearing that spanned many hours and multiple days. Based on the record, it is apparent that this issue was addressed promptly and did not occur outside the single instance cited in your appeal. We found no error in the hearing chair's procedural determination that the concerns raised did not render the hearing "irreparably tainted," a determination that fell well within her discretion. Therefore, we do not find this argument sufficient to warrant granting your appeal. To your second point, the Notice of Formal Complaint issued to you at the commencement of this matter clearly notified you that additional violations might be identified throughout the process. That same document detailed the factual allegations underlying the misconduct for which you were found responsible. Finally, your disagreement with the factual conclusions of the hearing panel does not render their determination clearly erroneous. Therefore, we also do not find this argument sufficient to warrant granting your appeal.

Your additional arguments assert bias on the part of the hearing chair and panel, and allege that the hearing chair and the Title IX Coordinator "either lied or schemed" or were "grossly incompetent." These allegations are wholly unsupported by the extensive record in this matter.

Therefore, and by unanimous decision, we affirm the decision and sanctions issued by the hearing panel.

This decision is the final University action in this case.

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Sincerely,

Ryan T. Lombardi, Ed.D.
Vice President for Student & Campus Life

Cc: Complainant
Title IX Coordinator

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